

Yogesh Kumar Jain v. Krishna Pal Puri, Executive Engineer

Allahabad High Court · Single Judge · 11 October 2017 · Contempt Application (Civil) No. 3576 of 2017 · **Contempt application disposed of on compliance; Executive Engineer directed to consider the applicant's claim under clause 6.5 within three weeks from 16 October 2017, the applicant undertaking to appear.**

HEADNOTE

A civil contempt application alleging that the Executive Engineer had failed to consider the applicant's billing objection within the period stipulated by the U.P. Electricity Supply Code, 2005 was disposed of on the filing of a compliance affidavit and the fixing of a date for consideration. The Court directed that the applicant's claim be considered under clause 6.5 within three weeks of 16 October 2017, the applicant undertaking to appear before the Executive Engineer and place his supporting material; the merits of the billing objection were left to that statutory consideration.

FACTUAL SUMMARY

Yogesh Kumar Jain brought a civil contempt application complaining that the Executive Engineer (Electric Urban Distribution Division) had failed to consider his application concerning his electricity bill, which an earlier writ-court order had required to be decided within a stipulated period after service of the certified copy (served by registered post on 22 March 2017). After notice was issued, a compliance affidavit disclosed that the original officer had been transferred and that the successor had fixed 16 October 2017 for consideration of the applicant's claim.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Contempt disposal directing consideration of a billing objection

HOLDING

Where a compliance affidavit shows that the Executive Engineer has fixed a date to consider the applicant's billing objection, the contempt application is disposed of with a direction that the claim be considered under clause 6.5 within three weeks of the fixed date, on the applicant's undertaking to appear and place his material. No contempt is recorded and the merits of the objection are left to that statutory consideration.

FLAG The notice order dated 22 August 2017 refers to the applicant's claim as arising under 'Clause 6.25' of the Code, while the disposing order dated 11 October 2017 refers to 'para 6.5'. The operative direction is under clause 6.5.

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill

A civil contempt application alleging that the Executive Engineer had failed to consider the applicant's billing objection within the period stipulated by the U.P. Electricity Supply Code, 2005 was disposed of on the filing of a compliance affidavit and the fixing of a date for consideration..

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE APPLICANT'S BILLING OBJECTION UNDER CLAUSE 6.5

Not decided; directed to be considered by the Executive Engineer within three weeks from 16 October 2017.